

HAYS COUNTY MUNICIPAL UTILITY DISTRICT NO. 5

**ORDER DECLARING ELECTION OF UNOPPOSED CANDIDATES
AND CANCELING NOVEMBER 5, 2024 DIRECTOR ELECTION**

September 9, 2024

THE STATE OF TEXAS §

COUNTY OF HAYS §

Recitals

The Board of Directors ("Board") of Hays County Municipal Utility District No. 5 (the "District") has called a director election for November 5, 2024 (the "Election").

The deadline to submit an application for a place on the ballot for the Election was August 19, 2024. The deadline to file an application for write-in candidacy for the Election was August 23, 2024.

The Secretary of the Board is the authority responsible for having the official ballots prepared for the Election and, on September 9, 2024, submitted to the Board the "Certification of Unopposed Status of Candidates for the November 5, 2024 Director Election", attached as **Exhibit "A"**.

Under Section 2.053 of the Texas Election Code, if the Board receives a certification of unopposed status of candidates, it shall declare each unopposed candidate elected to office.

Therefore, the Board orders that:

1. The "Certification of Unopposed Status of Candidates for the November 5, 2024 Director Election" submitted on September 9, 2024 is accepted.
2. James Wilson Greenway and Linda Hubble are elected to office as Directors for Hays County Municipal Utility District No. 5, their terms will begin on November 5, 2024 and they will begin their duties as Director after executing a Statement of Elected Officer and taking the Oath of Office.
3. The Election is canceled.
4. This Order will constitute a certificate of election, and the Secretary of the Board is directed to issue and deliver a copy to each candidate as required by Section 67.016 of the Texas Election Code and to post a copy of this Order at the polling place on the Election day.
5. This Order may be executed in multiple counterparts, each of which will be deemed an original and all of which together will constitute one and the same instrument. A digital signature, a facsimile or other electronic copy of an original signature, and a counterpart transmitted electronically (i.e., by fax, email, text, or similar means), will be deemed to be, and will have the same force and effect as, an original signature for all purposes.

* * * [signature page follows] * * *

ORDEN PARA DECLARAR LA ELECCIÓN DE CANDIDATOS SIN OPOSICIÓN Y CANCELAR LA ELECCIÓN PARA DIRECTOR DEL DÍA 5 DE NOVIEMBRE DE 2024.

de una firma original, y/o un ejemplar transmitido electrónicamente (por ejemplo, por facsímil, por correo electrónico, por mensaje de texto, u otros medios similares) constituirán, y tendrán la misma fuerza y efecto como si dicha firma fuera un original de la misma a todos efectos prácticos.

* * * [la pagina de firma sigue] * * *

Passed and approved on September 9, 2024.
Pasado y aprobado el día 9 de septiembre de 2024.



(SEAL)

**HAYS COUNTY MUNICIPAL UTILITY
DISTRICT NO. 5**

Tira Jones Holcomb
President, Board of Directors
Presidente, Junta Directiva

ATTEST:

Doy Fe:

Linda Hubble
Secretary, Board of Directors
Secretaria, Junta Directiva

Exhibit “A” / Anexo “A”

**Certification of Unopposed Status of Candidates
for the November 5, 2024 Director Election**

HAYS COUNTY MUNICIPAL UTILITY DISTRICT NO. 5

**CERTIFICATION OF UNOPPOSED STATUS OF CANDIDATES
FOR THE NOVEMBER 5, 2024 DIRECTOR ELECTION**

The undersigned, the Secretary of the Board of Directors of Hays County Municipal Utility District No. 5 (the "District"), is the authority responsible for having the official ballots prepared for the November 5, 2024 director election for the District and certifies that:

1. Two Directors of the District are to be elected at the November 5, 2024 director election.
2. The deadline for filing an application for a place on the ballot was August 19, 2024, and only two candidates filed for places on the ballot.
3. The deadline for filing an application for write-in candidacy was August 23, 2024, and no write-in candidates filed.
4. James Wilson Greenway and Linda Hubble are unopposed candidates for election as Directors of the District.
5. No proposition is scheduled to appear on the ballot.

Executed this the 9th day of September, 2024.

* * *

[signature page follows]

**DISTRITO DE SERVICIOS PÚBLICOS MUNICIPALES NO. 5
DEL CONDADO DE HAYS**

**CERTIFICACIÓN DE LA CONDICIÓN SIN OPOSICIÓN DE LOS CANDIDATOS
PARA LA ELECCIÓN DE DIRECTOR DEL DÍA 5 DE NOVIEMBRE DE 2024**

El infrascrito, la Secretaria de la Junta Directiva del Distrito de Servicios Públicos Municipales No. 5 del Condado de Hays (el "Distrito"), es la autoridad responsable de tener las boletas oficiales preparadas para la elección de Director del día 5 de noviembre de 2024, para el Distrito y certifica que:

1. Dos Directores del Distrito deben ser elegidos en la elección de Director del día 5 de noviembre de 2024.
2. La fecha límite para presentar una solicitud para un puesto en la boleta de votación era el día 19 de agosto de 2024, y sólo dos candidatos se presentaron para puestos en la boleta de votación.
3. La fecha límite para presentar una solicitud para añadir un candidato era el día 23 de agosto de 2024, y no se presentó ningún candidato para ser añadido.
4. James Wilson Greenway, y Linda Hubble son candidatos sin oposición para la elección como Directores del Distrito.
5. No hay ninguna proposición programada para aparecer en la boleta de votación.

Llevado a cabo el día 9 de septiembre de 2024.

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Luella C. Noble

(seal)
(seal)



A rectangular notary seal stamp with a decorative border. On the left side, there is a circular emblem containing a five-pointed star. The text "NOTARY PUBLIC" is curved along the top of the circle, and "STATE OF TEXAS" is curved along the bottom. To the right of the emblem, the following text is printed in a sans-serif font: "LAURA KRUPPNER", "Notary Public, State of Texas", "Comm. Expires 05-21-2026", and "Notary ID 131576720".

Lauren Krippner

Notary Public Signature
Firma del "Notary Public"